IN THE UNITED STATES PATENT AND TRADEMARK OFFICE

In re Patent Application of:	Reinaldo Javier Aguiar Marcano
Application Number:	19/559,656
Confirmation Number:	1120
Filing Date:	March 6, 2026
Group Art Unit:	Pre-Exam / TC 2100
Examiner:	Andrea Bennett
Title of Invention:	DISTRIBUTED SYSTEM AND METHOD FOR COVERT COMMUNICATION VIA SATELLITE-OBSERVABLE, GEO-SPATIALLY LOCATED VISUAL ENCODERS

APPLICANT'S COMPLETE RESPONSE TO NOTICE TO FILE MISSING PARTS AND NOTICE OF INCOMPLETE REPLY (37 CFR §§ 1.52, 1.53(f); MPEP §§ 506, 601.01(a)) SUBMISSION OF REPLACEMENT ABSTRACT ON A SEPARATE SHEET REAFFIRMATION OF SMALL ENTITY STATUS (37 CFR § 1.27) PETITION FOR TWO-MONTH EXTENSION OF TIME (37 CFR § 1.136(a)) AND CONDITIONAL REQUEST FOR SUSPENSION OF ACTION (37 CFR § 1.103)

Commissioner for Patents
P.O. Box 1450
Alexandria, VA 22313-1450

Sir:

In response to the Notice to File Missing Parts of Nonprovisional Application mailed on June 12, 2026, the Notice of Incomplete Reply mailed on September 15, 2026, and in view of the Decision on Petitions under 37 CFR §§ 1.181 and 1.183 mailed on October 1, 2026, the *pro se* Applicant, Reinaldo Javier Aguiar Marcano, respectfully submits this complete, substantive response curing all noted pre-examination formalities and fee deficiencies.

I. EXECUTIVE SUMMARY OF CURED ITEMS

Applicant has completely and successfully cured every formality and fee item cited in the pre-examination notices in accordance with 37 CFR §§ 1.52 and 1.53(f) and MPEP §§ 506 and 601.01(a):

1. **Replacement Abstract on a Separate Sheet (37 CFR § 1.72(b); MPEP § 608.01(b)):** Submitted herewith as a standalone document, containing the complete original Abstract commencing on its own separate page. (Note: Original Claims 1–20 were already filed commencing on a separate sheet on March 6, 2026).
2. **Reaffirmation of Small Entity Status (37 CFR § 1.27):** Applicant formally reaffirms Small Entity status under 37 CFR § 1.27 (asserted of record on August 2, 2026), withdraws any prior claim to Micro Entity status, and authorizes payment and reconciliation of all statutory Small Entity fees.
3. **Petition for Extension of Time (37 CFR § 1.136(a); MPEP § 710.02(e)):** Submitted herewith, petitioning for a two-month extension of time (extending the reply deadline from August 12, 2026 to October 12, 2026) with authorization to charge the applicable Small Entity fee of $276.00 (Fee Code 2252).
4. **Conditional Request for Suspension of Action (37 CFR § 1.103(a); MPEP § 709):** Submitted concurrently, requesting a six-month suspension of action on the merits to take effect immediately upon pre-examination clearance and docketing to Technology Center 2100.

II. STATEMENT OF COMPLIANCE AND DETAILED RESPONSES

1. Technical Compliance: Replacement Abstract Commencing on a Separate Sheet

The Notice to File Missing Parts noted that the originally filed application integrated the Abstract on the first page of the specification rather than commencing on a separate sheet.

Applicant hereby submits a standalone Replacement Abstract sheet pursuant to 37 CFR § 1.121:

- **Replacement Abstract Sheet:** The complete Abstract of the technical disclosure is set forth on a single, clean separate page, commencing on its own separate sheet in full compliance with 37 CFR § 1.72(b) and MPEP § 608.01(b).
- **Preservation of Claims:** The original Claims 1 through 20 were filed on March 6, 2026 commencing on a separate sheet in full compliance with 37 CFR § 1.75(h), and remain unchanged.

No new matter is introduced. The text of the Abstract is identical to that presented in the original March 6, 2026 nonprovisional filing.

2. Establishment of Entity Status and Fee Reconciliation (37 CFR § 1.27)

Applicant previously asserted Small Entity status on August 2, 2026. Applicant hereby formally reaffirms Small Entity status under 37 CFR § 1.27.

Applicant authorizes the Office of Patent Application Processing (OPAP) to:

(a) Apply the Small Entity fee schedule to all statutory fees for Application No. 19/559,656;

(b) Apply all previously paid fees (including the $34.00 partial surcharge paid on July 25, 2026) toward the outstanding statutory requirements; and

(c) Remit the applicable Small Entity fees concurrently herewith via Patent Center electronic payment, and respectfully request that if the Office determines any additional fee balance is due, the Office issue an itemized Notice of Fee Deficiency.

3. Petition for Extension of Time under 37 CFR § 1.136(a)

The Notice to File Missing Parts mailed June 12, 2026 set an initial two-month period for reply expiring August 12, 2026.

A one-month extension under 37 CFR § 1.136(a) extended the period to September 14, 2026 (September 12, 2026 having been a Saturday, rolling to Monday, September 14 under 37 CFR § 1.7).

The instant complete response is submitted on or before **October 12, 2026**.

Accordingly, Applicant concurrently petitions for a **Two-Month Extension of Time** under 37 CFR § 1.136(a) and tenders the applicable Small Entity extension fee of **$276.00** (Fee Code 2252).

III. COMPLIANCE WITH OCTOBER 1, 2026 PETITION DECISION (OPPT)

Applicant respectfully acknowledges receipt of the Office of Petitions Decision (OPPT) dated October 1, 2026 (signed by Attorney Advisor Charles Steven Brantley), dismissing Applicant's prior petition under 37 CFR §§ 1.181 and 1.183.

The Decision noted that:

> *"Even if 37 C.F.R. § 1.103(a) required a NMP not to be outstanding, an extraordinary situation where justice requires waiver of a requirement of a regulation would not exist in this case because the applicant would be able to avoid the need for the requirement to be waived by simply filing a proper and complete reply to the NMP."*

Applicant has complied strictly with the guidance provided by the Office of Petitions:

1. Rather than pursuing further burdensome Rule 181/183 petitions or requests for reconsideration, Applicant has focused on the complete, immediate perfection of all pre-examination filing formalities;
2. By submitting the replacement abstract on a separate sheet, small entity fee authorization, and 2-month extension of time, **this application is now in 100% complete compliance with all requirements of the pre-examination notices**; and
3. Applicant respectfully requests that the Office of Patent Application Processing (OPAP) issue the formal **Notice of Acceptance of Application** (or updated Filing Receipt) and forward this application to Technology Center 2100 (Examiner Andrea Bennett) for examination.

IV. CONDITIONAL REQUEST FOR SUSPENSION OF ACTION UNDER 37 CFR § 1.103

Pursuant to MPEP § 709, a request for suspension of action under 37 CFR § 1.103 cannot be granted while a notice to file missing parts is outstanding. Therefore, Applicant submits his concurrent Request for Suspension under § 1.103(a) as a **conditional request** to take effect immediately upon OPAP's determination that the pre-examination formalities have been completely cured and the application has been docketed for examination in Technology Center 2100.

The suspension is requested for good and sufficient cause based on the documented collateral litigation and constructive confinement issues currently pending resolution before the United States District Court for the Southern District of Texas (Civil Action No. 4:26-CV-08794, *Aguiar Marcano v. Pickett et al.*).

V. CONCLUSION

Applicant has fully and completely satisfied all requirements of the pre-examination notices. It is respectfully requested that the application be accepted and processed for substantive examination.

Respectfully submitted,

/Reinaldo Javier Aguiar Marcano/
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Date: October 9, 2026